

The two distribution notes — for the day the report is provided

WC/2024/227 · Shepherd · sent **simultaneously** · both enclose the report, the letter of instruction and the schedule of assumed facts

INTERNAL HEADER ONLY — this page is not sent. Each note below is sent as the body of its own email. Insert the report's date where marked. **Send both within the same minutes:** simultaneous provision leaves no sequencing inference available to anyone.

NOTE 1 — TO THE WORKERS' COMPENSATION REGULATOR

To: Renee.Matheson@oir.qld.gov.au · **Cc:** the OIR appeals registry

Subject: WC/2024/227 — Shepherd — continuing disclosure — report of Dr R B Krishnaiah

Dear Ms Matheson,

I enclose, by way of continuing disclosure, the report of **Dr Ravikumar Bangalore Krishnaiah, Consultant Psychiatrist, dated [DATE OF REPORT]**, together with my letter of instruction and the schedule of assumed facts provided with it.

The report addresses the three matters in issue as stated in the Notice of Non-Party Disclosure served on the practice in this proceeding. It also answers the request for medical information made by my employer on 31 July 2026.

The same report has today been provided to Metro South Hospital and Health Service. The cost of the report has been met by Metro South Hospital and Health Service; it was instructed by me and is addressed to me.

Kind regards,

Cory Lea Shepherd
Appellant, WC/2024/227

NOTHING FURTHER. No argument, no commentary, no request, no explanation of what the report establishes. A report is evidence — it argues for itself, and anything added to it subtracts from it. This is disclosure, which is the one category of communication that carries no ask.

NOTE 2 — TO METRO SOUTH HOSPITAL AND HEALTH SERVICE

To: lbh_InjuryManagement@health.qld.gov.au · Cc: lbh_hr@health.qld.gov.au; Scott Hughes, Director Corporate Services
Subject: Request for medical information, 31 July 2026 — response — Mr Cory Shepherd

Dear Ms Harrison,

1. I enclose the report of **Dr Ravikumar Bangalore Krishnaiah, Consultant Psychiatrist, dated [DATE OF REPORT]**, in answer to the Health Service's request for medical information of 31 July 2026. I also enclose my letter of instruction and the schedule of assumed facts provided with it, so that the basis of the opinion is apparent.
2. **Scope.** The report addresses the matters raised in the request. Where a question goes to workplace arrangements rather than to medical capacity, the report identifies it as such and says so rather than answering it. **If any clinical matter remains outstanding, please identify it and I will put it to Dr Krishnaiah.**
3. **The framework the Health Service has invoked.** The request is made under HR Policy G3 / QH-POL-210, *Reasonable Adjustment*. That policy provides that whether an adjustment is unreasonable or would cause “*unjustifiable hardship*” is “**tested against the whole organisation, not a division or unit within the organisation**”, and that “**the onus is on Queensland Health, as the employer, to prove an adjustment is unreasonable, not on the person to prove that it is reasonable.**” The same policy records that a failure to provide reasonable adjustment “*may constitute unlawful discrimination.*”
4. **What I ask.** That the adjustments identified in the report be implemented, and that I be returned to my substantive position on that basis; and that my pay be restored, and the leave debited since 3 July 2026 be recredited.
5. The matters raised in my correspondence of **3 August 2026** remain undetermined, including the request made that day under the flexible working provisions of the Enterprise Agreement, in respect of which the period for a decision expires on **24 August 2026**.
6. **The same report has today been provided to the Workers' Compensation Regulator** by way of continuing disclosure in QIRC proceeding WC/2024/227. The cost of the report has been met by the Health Service; it was instructed by me and is addressed to me.

Kind regards,

Cory Lea Shepherd
Administration Officer, Switchboard Services, Logan Hospital

WHAT MUST NOT ACCOMPANY EITHER NOTE: no reference to the Public Interest Disclosure or to reprisal · no reference to any conflict of interest · no characterisation of anyone's conduct · nothing from the parallel tracks. **And nothing about the December 2024 matter, its outcome, or the separation document** — standing rule 10.

BEFORE SENDING NOTE 2: verify the flexible-working clause numbering against EB12 if the clause is to be cited; the note above deliberately refers to “*the flexible working provisions of the Enterprise Agreement*” without a clause number, which is safe as it stands.